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Aleksander Hynnä
Editor in Chief, *The Loophole*
Commonwealth Association of Legislative Counsel

Dear Mr Hynnä,

I am submitting for your consideration an article entitled *How Much Do Statutes Disagree? Measuring Definitional Fragmentation Across a Legal System*.

The article addresses a question that the drafting literature has long discussed through examples and never measured: how far a legal system actually achieves consistency in the terms its statutes define. It does so for Saudi Arabia, using a machine-readable corpus of 291 legislative instruments in which every definitions article has been parsed into term–definition pairs — 1,920 distinct terms carrying 3,318 definitions.

Its argument is deliberately deflationary. Measured automatically, 61.5 per cent of the substantive terms that more than one instrument defines are worded divergently, and a study reporting that figure would look like a finding of pervasive incoherence. The article argues that it is not one, and that two separations are needed before any such number means anything: one between definitions that name a particular instrument or organ of state — which cannot conflict with each other — and definitions that describe a class; and one between divergence in wording and divergence in law. Reading the twelve most widely shared terms across every instrument that defines them leaves four genuine conflicts. The clearest is the one in the title: a sole trader with no employees is an *establishment* under the Competition Law and is not one under the Labour Law.

I hope it is of interest to *The Loophole*'s readers on three grounds, and the second is the reason I am sending it here rather than to a general law journal. It brings quantitative evidence to a question the drafting literature has had to argue from anecdote. It concerns a jurisdiction with *no general interpretation statute* — which makes it the untreated case against which the Commonwealth interpretation acts can be assessed, and the article sets out which of its four conflicts such an instrument would and would not resolve. And it ends where a drafter can act: three responses of ascending ambition, the least of which requires no legislation at all, and a finite list of terms rather than a rate.

The manuscript is approximately 7,993 words including footnotes, and the abstract is under two hundred — both inside your stated limits. It is not under consideration elsewhere. Several companion manuscripts drawing on the same corpus are under review at other journals — among them one describing the corpus as a research resource and one analysing its citation network — and none overlaps with this article's contribution. The corpus, the analysis code that reproduces every number and figure in the article, and the checks that refuse to build a manuscript carrying a hand-typed figure are all public in an openly licensed

repository, which the article cites.

Yours faithfully,

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